

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 20-023
Amendments to Title 5, Chapter 1, Article D, Section 5-104.4 and
Article E, Section 105.7 of the Chickasaw Nation Code
(Courts and Procedures)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Tribal Legislature passed amendments to certain sections of Title 5, Chapters 1 and 2 to amend position titles that were changed through the ratification of Amendment V to the Constitution through the passage of PR20-012 on June 20, 2003 by a vote of 12 ayes, 0 nays and no abstentions, and

WHEREAS, the office of the General Counsel to the Executive Department has made suggestions regarding PR20-012.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapters 1 and 2; the other sections of said Chapters shall remain the same (additions and case changes are shown in red, deletions are stricken through):

ARTICLE D
GROUND FOR DISQUALIFICATION OF ~~JUSTICE~~ JUDGE

SECTION 5-104.4 **DISQUALIFICATION REQUIRED, WHEN.**

A. A Justice shall recuse himself; **and** inform the parties or be subject to a motion for disqualification, if any of the following obtain:

6. The Justice, individually or as a fiduciary, or spouse or minor child residing in a **Justice's** ~~judge's~~ household, has a financial or other interest that could be substantially affected by the outcome; or

SECTION 5-105.7 **WHEN MORE THAN ONE JUSTICE IS DISQUALIFIED, SPECIAL JUSTICES.**

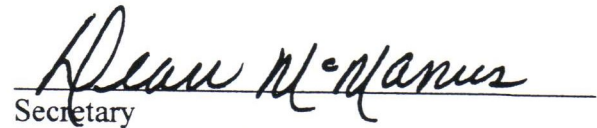
A. If more than one Justice is disqualified from hearing in a case, the Governor shall submit to the Legislature, within five (5) days of the disqualification of more than one (1) Justice

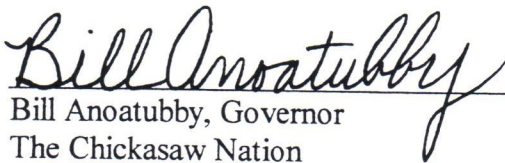
in the case. Care shall be taken by the Governor to recommend names which are not subject to allegations of bias or prejudice in the matter.

B. The Legislature shall approve or disapprove the Special Justices within ten (10) days of the submission of the names by the Governor. ~~No questioning of such Special Justices shall be permitted in regard to their appointment by either the elected Justices or the Legislature.~~

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on August 15, 2003, by a vote of 11 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: August 22, 2003

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 20-023
Amendments to Title 5, Chapter 1, Article D, Section 5-104.4 and
Article E, Section 5-105.7 of the Chickasaw Nation Code
(Courts and Procedures)

Explanation: This resolution provides amendments to Title 5, Chapter 1, Article D, Section 5-104.4 and Article E, Section 5-105.7 of the Chickasaw Nation Code. This resolution adopts amendments to that Code requested by the office of General Counsel to the Executive Department.

Requested By: D. Scott Colbert, Chairman
Court Development Ad Hoc Subcommittee

Presented By: D. Scott Colbert, Chairman
Court Development Ad Hoc Subcommittee